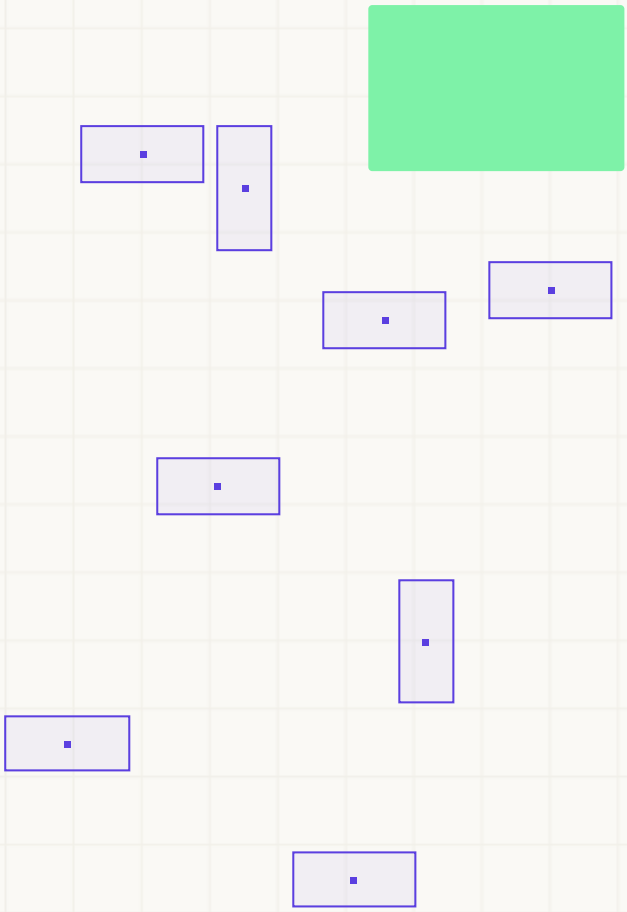
LAAI | AI FOR CONSTRUCTION



The EU AI Act: what it means for construction

Risk levels, key dates, your role and your duties, explained in plain language with examples from architecture offices, builders, developers and timber manufacturers. Updated with the 2026 Digital Omnibus changes.

INSIDE
4 risk levels, a timeline, 20 construction examples and a 10-step checklist

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CHECKED
October 2026 · Málaga
Not legal advice

THE SHORT VERSION

Most AI use in construction is low risk. But every company has a few duties already.

The AI Act (Regulation (EU) 2024/1689) is the first broad law on AI in the world. It does not regulate the technology itself but how it is used: the higher the risk to people's safety and rights, the stricter the rules.

Prohibited
e.g. emotion recognition of workers

High risk
e.g. AI that screens CVs or rates workers' performance

Transparency
e.g. a chatbot on your website, realistic AI images and videos

Minimal risk: no specific duties
e.g. summarising tenders, drafting reports, BIM scripts, renders for design, scheduling, estimating

Already in force

- ☐ Prohibited practices: since Feb 2025
- ☐ AI literacy of staff: since Feb 2025
- ☐ Transparency duties: since Aug 2026

Coming next

- ☐ High-risk uses (HR, workers): 2 Dec 2027
- ☐ High-risk AI inside machinery and other products: 2 Aug 2028

What to do now

- ☐ List the AI you use
- ☐ Train your team and keep a record
- ☐ Label AI chatbots and realistic AI images

TIMELINE

The rules arrive in steps, and the high-risk dates have moved

In 2026 the EU adopted the Digital Omnibus on AI, which gave companies more time for the high-risk rules because the technical standards were late. The bans, the literacy duty and the transparency rules did not move.

1 Aug 2024 — **The AI Act enters into force** IN FORCE
Nothing applies yet; the clock starts.

2 Feb 2025 — **Prohibited practices and AI literacy** IN FORCE
Banned uses stop. Companies must take measures so staff who use AI understand it.

2 Aug 2025 — **General-purpose AI models and penalties** IN FORCE
Duties for the makers of models such as GPT, Claude or Gemini. National authorities and fines are set up.

27 Jul 2026 — **The Digital Omnibus on AI enters into force** CHANGE
Regulation (EU) 2026/1744 delays the high-risk rules and rewrites the AI literacy article.

2 Aug 2026 — **Transparency duties** IN FORCE
Chatbots must say they are AI; deepfakes must be labelled. Short transition for machine-readable marking of AI content.

2 Dec 2027 — **High-risk uses listed in Annex III** COMING
Includes AI for hiring, managing and evaluating workers, education and critical infrastructure. Was 2 August 2026.

2 Aug 2028 — **High-risk AI inside regulated products (Annex I)** COMING
AI as a safety component of machinery, lifts and other products. Was 2 August 2027.

> Dates checked in October 2026 against published summaries of Regulation (EU) 2026/1744. Check the official text on EUR-Lex before relying on a date, in particular for the transitional rules on marking AI-generated content.

WHO DOES WHAT

Your duties depend on your role. Most construction companies are deployers.

The Act gives most duties to the companies that make AI systems. A company that uses AI under its own authority in its work is a deployer, with fewer and lighter duties.

PROVIDER

Makes the AI

Develops an AI system and puts it on the market or into service under its own name. Example: a software company selling an AI estimating tool.

DEPLOYER · YOU

Uses the AI

Uses an AI system in its professional work. Example: an architecture office using ChatGPT, Claude or Copilot, or a builder using an AI planning tool.

IMPORTER

Brings it in

Places on the EU market an AI system from a company outside the EU.

DISTRIBUTOR

Resells it

Makes an AI system available without being its maker or importer, for example a software reseller.

When a user becomes a provider

- ☐ You put your own name or brand on a high-risk AI system
- ☐ You make a substantial change to a high-risk system
- ☐ You use a general tool for a high-risk purpose, for example to rank job candidates
- ☐ You build and sell an AI tool to other companies

Tools you build for yourselves

- ☐ A script or assistant built with AI for your own drawings, quantities or reports is usually minimal risk: no specific AI Act duties
- ☐ Once it touches hiring, worker evaluation or safety functions, check whether it is high risk
- ☐ GDPR, copyright and contracts still apply to every tool

The Act also applies to companies outside the EU when their AI is used in the EU, and it does not apply to purely personal, non-professional use or to scientific research.

CONSTRUCTION EXAMPLES

Where typical construction uses of AI fall

The level depends on the purpose, not on the tool. The same chatbot is minimal risk for summarising a tender and high risk when it ranks job candidates.

USE	WHO	LEVEL
Summarising tenders and specifications	Office, estimating	MINIMAL
Drafting reports, technical memos and emails	All	MINIMAL
BIM scripts for Revit, Rhino or Grasshopper written with AI	Design, BIM	MINIMAL
Generating floor plan options and renovation estimates	Design, sales	MINIMAL
Clash detection, quantity take-off, schedule optimisation	BIM, site	MINIMAL
Quality control of timber elements or modules before delivery	Factory	MINIMAL
A chatbot on your website that answers buyers or clients	Sales, developers	TRANSPARENCY
Photo-realistic AI images or videos of real places, published	Marketing	TRANSPARENCY
AI that filters CVs or ranks job candidates	HR	HIGH
AI that allocates tasks or rates workers' performance based on their behaviour	Site management	HIGH
AI as a safety component of machinery, such as an autonomous crane	Manufacturers	HIGH
AI that controls the safety of water, gas, heating or electricity supply	Infrastructure	HIGH
Cameras that recognise workers' emotions on site or in the office	Site, HR	PROHIBITED

Indicative classification for common cases. The final level depends on the exact purpose and context; when in doubt, ask the supplier and get legal advice.

BANNED SINCE 2 FEBRUARY 2025

Eight practices you may not use, whatever the tool

PRACTICE	WHAT IT MEANS	CONSTRUCTION EXAMPLE
Manipulation	AI that uses subliminal or deceptive techniques to distort people's decisions and cause harm.	A sales tool that pressures buyers with hidden techniques
Exploiting vulnerabilities	Targeting people because of their age, disability or social or economic situation.	Ads that target people in financial trouble with misleading mortgage offers
Social scoring	Scoring people on their social behaviour or personal traits, leading to unfair treatment.	Rating tenants or subcontractor staff on their private life
Emotion recognition at work	Inferring emotions of people at work or in education, except for medical or safety reasons.	Cameras on site that judge whether workers are motivated or stressed
Scraping faces	Building facial recognition databases by scraping images from the internet or CCTV.	Collecting faces from site cameras to build a database
Biometric categorisation	Using biometric data to infer race, political opinions, union membership, religion or sexual orientation.	Sorting workers by union membership from their images
Predicting crime	Predicting that a person will commit a crime based only on profiling or personality traits.	Flagging workers as likely thieves of site materials based on their profile
Real-time biometric ID by police	Remote facial recognition in public spaces for law enforcement, with narrow exceptions.	Not a construction use, but relevant for smart-city projects

Watch out on site

- ☐ Safety cameras that detect a missing helmet or a person in a danger zone are allowed; cameras that read workers' emotions or mood are not, unless for real medical or safety reasons.
- ☐ Fatigue detection for machine operators may fit the safety exception, but get advice and inform the workers' representatives first.

FROM 2 DECEMBER 2027

High risk: where construction companies are most likely to meet it

Employment and worker management

- ☐ Recruiting: placing targeted job ads, filtering CVs, evaluating candidates
- ☐ Decisions on promotion, dismissal or contracts
- ☐ Allocating tasks based on behaviour or personal traits
- ☐ Monitoring and evaluating performance and behaviour

Other areas that touch construction

- ☐ Safety components in the management of road traffic and the supply of water, gas, heating and electricity
- ☐ Training centres: admissions, assessing students, detecting cheating
- ☐ Credit scoring of home buyers (mostly banks)
- ☐ From Aug 2028: AI as a safety component of machinery, lifts and other regulated products

Your duties as a deployer of high-risk AI

- ☐ **Use it as instructed** by the provider, and only for its intended purpose.
- ☐ **Human oversight:** name trained people who can understand, question and override the output.
- ☐ **Relevant input data** where you control it.
- ☐ **Monitor and report:** stop using it and tell the provider and authority if it shows a serious risk or incident.
- ☐ **Keep the logs** it generates for at least six months.
- ☐ **Inform workers and their representatives** before using it at the workplace, and inform people when it helps make decisions about them.

An AI system in these areas may not be high risk if it only does a narrow procedural or preparatory task and does not replace human assessment, but systems that profile people are always high risk.

FROM 2 AUGUST 2026

Say when it is AI

The transparency rules protect people from being misled. For construction they mostly matter in sales and marketing.

Chatbots and assistants

- A chatbot that talks to clients or buyers must make clear they are talking to AI, unless it is obvious
- Example: «I am the AI assistant of [company]; a person can take over at any time»

Images, video and audio

- Deepfakes, realistic AI content that resembles real people, places or events and could seem authentic, must be disclosed as AI
- For clearly artistic or creative work the disclosure can be light and must not spoil the work

Text for the public

- AI-written text published to inform the public on matters of public interest must be disclosed
- Not needed when a person reviewed it and takes editorial responsibility

Makers of generative AI

- Providers must mark AI-generated content in a machine-readable way, such as watermarks or metadata
- Do not remove these marks from images you publish

Good practice for renders and marketing

- A design render of a building that does not exist yet is usually not a deepfake, but a realistic AI image of a real street, a real view or a finished home can be.
- Add a short note such as «AI-generated image, for illustration only». It also protects you under consumer and advertising law.
- Never use AI images to hide defects or show views, finishes or surroundings that a buyer will not get.

THE DUTY EVERY COMPANY HAS

AI literacy: make sure your people know what they are using

Since February 2025, every company that uses AI at work must take measures to build the AI literacy of its staff and of people using AI on its behalf. The 2026 Omnibus rewrote the article: the duty stays, but it does not require a guaranteed level for each person, and the Commission and Member States must support smaller companies.

Know

- ☐ What AI can and cannot do
- ☐ Why it makes mistakes
- ☐ Which tools are approved

Do

- ☐ Check every output before it leaves the office
- ☐ Keep client data out of free tools
- ☐ Write good prompts

Show

- ☐ A list of the AI you use
- ☐ Training by role, with dates
- ☐ A one-page AI policy

OTHER LAWS THAT STILL APPLY

LAW	WHAT IT MEANS FOR AI
GDPR	Personal data of clients, workers and neighbours needs a legal basis and a safe tool with a data agreement.
Spanish Workers' Statute, art. 64.4.d	In Spain, the works council has the right to be informed of the rules of algorithms and AI that affect working conditions, hiring or dismissal.
Copyright	Check the terms of each tool for who owns the output, and do not upload drawings or documents you have no right to share.
Professional liability	The architect or engineer who signs is responsible, whether or not AI helped. AI does not sign projects.

WHO CHECKS

In Spain, AESIA leads the supervision of the AI Act

Authorities

- **AESIA**, the Spanish Agency for the Supervision of AI, based in A Coruña: the main market surveillance authority
- **AEPD**, the Spanish data protection agency, for personal data and certain biometric uses
- **European AI Office**, for the makers of general-purpose AI models

Spanish initiatives

- Spain ran one of the first regulatory sandboxes for AI, where companies test high-risk systems with the authority
- A Spanish law on the good use and governance of AI has been in preparation since 2025; check its status
- AESIA publishes practical guides on the AI Act

MAXIMUM FINES

€35M · 7%
of worldwide annual turnover, for prohibited practices

€15M · 3%
for breaking most other duties, including high-risk and transparency rules

€7.5M · 1%
for giving incorrect or misleading information to authorities

For large companies the higher of the two amounts applies; for SMEs and start-ups, the lower. Authorities take into account the size of the company and whether it cooperated.

> **For a typical construction company the real risk is not a fine. It is a wrong output that nobody checked, or client data in a free tool.**

TEN STEPS

Your AI Act checklist

01	Make a list of every AI tool used in the company, including free ones	☐ Done ☐ To do
02	Write down for each one what it is used for and who uses it	☐ Done ☐ To do
03	Classify each use: prohibited, high risk, transparency or minimal	☐ Done ☐ To do
04	Stop anything prohibited right away	☐ Done ☐ To do
05	Move company and client data to business plans with a data agreement	☐ Done ☐ To do
06	Write a one-page AI policy and share it with everyone	☐ Done ☐ To do
07	Train each role and keep a simple record of who was trained and when	☐ Done ☐ To do
08	Label AI chatbots and realistic AI images and videos	☐ Done ☐ To do
09	For HR or worker tools: ask the supplier about the AI Act, plan human oversight and inform workers' representatives	☐ Done ☐ To do
10	Review the list every six months and when you add a tool	☐ Done ☐ To do

EXAMPLE: THE START OF AN AI INVENTORY

TOOL	USED FOR	WHO	LEVEL
Claude / ChatGPT business plan	Tenders, reports, emails	Office	MINIMAL
AI scripts for Revit	Quantities, sheet checks	BIM	MINIMAL
Website chatbot	Buyer questions	Sales	TRANSPARENCY
CV screening in HR software	Shortlisting candidates	HR	HIGH

NEED HELP?

From the AI Act to a plan your team can follow

- ☐ **AI inventory and classification** of the tools your company uses.
- ☐ **AI literacy training** by role, with a record you can show.
- ☐ **A one-page AI policy** adapted to construction.
- ☐ **An AI strategy** that fits the rules from the start.

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Free guides on AI strategy, tools, risks and terms are in the AI information library on my website.

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This guide explains the AI Act in general terms and is not legal advice. It reflects Regulation (EU) 2024/1689 as amended by Regulation (EU) 2026/1744, as summarised in October 2026. Check the official texts on EUR-Lex and the guidance of AESIA and the European Commission for your specific case.